

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

MOLLY GRIFFARD,

Plaintiff,

-against-

THE CITY OF NEW YORK, and New York City
Police Department Officers STEVE MATHIAS (Shield
No. 06878) and PHILIP TSE (Shield No. 11569), in
their individual capacities,

Defendants.

Index No. _____

SUMMONS

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon Plaintiff's attorney, at his address stated below, an Answer to the attached Complaint.

If this Summons was personally served upon you in the State of New York, the Answer must be served within 20 days after such service of the Summons, excluding the date of service.

If the Summons was not personally delivered to you within the State of New York, the Answer must be served within 30 days after service of the Summons is complete as provided by law.

If you do not serve an Answer to the attached Complaint within the applicable time limitation, a judgment may be entered against you, by Plaintiff, for the relief demanded in the Complaint, without further notice to you.

The action will be heard in the Supreme Court of the State of New York, in and for the County of Kings. This action is brought in Kings County because that is where the claim arose.

Dated: May 2, 2023
New York, New York

Respectfully submitted,



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**VERIFIED COMPLAINT AND
DEMAND FOR JURY TRIAL**

Plaintiff Molly Griffard, by her attorneys, Beldock Levine & Hoffman LLP, as and for her
Complaint against the Defendants, alleges as follows:

PRELIMINARY STATEMENT

1. Ms. Griffard brings this civil rights action under the United States Constitution, through 42 U.S.C. § 1983, seeking to recover for injuries caused by the denial of her constitutional rights, which resulted in her unlawful arrest and the seizure of her dog in retaliation for recording police activity and requesting an officer's business card.

2. On May 3, 2020, Ms. Griffard—who is a staff attorney with the Legal Aid Society's Law Reform and Special Litigation Unit—was walking her 9-year-old Yorkie Harvey in the Bedford Stuyvesant neighborhood of Brooklyn when she saw officers from the New York City Police Department ("NYPD") remove a young man from a bodega and bring him around the corner, where NYPD officers had detained and were questioning several young men whom officers had lined up against a wall.

3. Ms. Griffard began recording the interaction on her phone from a safe distance while informing the young men of their right to an attorney and their right to remain silent.

4. The police officers began pushing Ms. Griffard back and, when Ms. Griffard asked one of the officers for his business card, the officer handcuffed Ms. Griffard.

5. Though Ms. Griffard's co-worker was on the scene and prepared to take Ms. Griffard's dog, the NYPD officers seized Harvey and took Ms. Griffard to the 79th precinct, where she was placed in a holding cell for eight hours.

6. For hours, Ms. Griffard asked about Harvey, but officers refused to tell Ms. Griffard where he was being held.

7. Ms. Griffard now seeks redress for the substantial injuries she suffered as a result of her unlawful, retaliatory arrest and the seizure of her companion animal, including (i) compensatory damages for her psychological and emotional distress, and other financial loss caused by the illegal actions of Defendants; (ii) punitive damages to deter such intentional or reckless deviations from well-settled constitutional law; and (iii) such other and further relief, including attorneys' fees and costs, as this Court deems just and equitable.

JURISDICTION AND VENUE

8. Venue is properly laid in the Supreme Court of the State of New York, County of Kings, because Ms. Griffard resides in Kings County, the incident took place in Kings County, and Defendants regularly and substantially conduct business in Kings County. C.P.L.R. § 503(a)–(b).

9. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

PARTIES

10. Ms. Griffard was at all times relevant to the action a resident of Kings County in the State of New York.

11. Defendant the City of New York ("City") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police

department, and does maintain the NYPD, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers because said risks attach to the public consumers of the services provided by the NYPD.

12. Defendants Steve Matthias and Philip Tse (the “Individual Defendants”) are, and were at all relevant times, officers, employees, and agents of the NYPD.

13. The Individual Defendants are being sued in their individual capacities.

14. At all relevant times, the Individual Defendants acted under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD, with the power and authority vested in them as officers, agents, and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees, and agents of the NYPD.

15. The Individual Defendants’ acts were carried out intentionally, recklessly, with malice, and in gross disregard for Ms. Griffard’s rights.

16. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described in this Complaint and lending their physical presence and support, and the authority of their offices, to one another.

STATEMENT OF FACTS

17. Ms. Griffard is a staff attorney at the Legal Aid Society.

18. In May of 2020, Ms. Griffard was working with the Cop Accountability Project, where her work specifically focused on police misconduct.

19. At the time, two months into the COVID-19 pandemic, the NYPD faced widespread scrutiny for their unequal enforcement of social distancing rules. Indeed, on May 8,

2020, the New York Attorney General’s Office—noting “alarm[] by recent videos and reporting”—requested data from the NYPD to assess whether police were disproportionately and more violently arresting New Yorkers for social distancing violations based on their race, color, or neighborhood.

20. On May 3, 2020, Ms. Griffard was walking her 9-year-old Yorkie Harvey in the Bedford Stuyvesant neighborhood of Brooklyn.



(Harvey)

21. While walking Harvey, she saw police officers remove a young man from a bodega, and drag him around the corner where they lined him up with other young men against a wall..

22. Ms. Griffard is experienced with “cop watching”—the practice of recording police as they interact with civilians.

23. When Ms. Griffard saw the officers questioning the young men, she began recording the interaction on her phone from a safe distance and informing the young men of their rights to an attorney and to remain silent.

24. A police officer began pushing Ms. Griffard back and then told her to cross the street, which she did.

25. Ms. Griffard began recording the license plates numbers of the NYPD vehicles at the scene with her phone and then asked the officer who had pushed her for his business card.

26. The officer was obligated to provide his business card pursuant to the Right to Know Act.

27. The officer, however, refused to provide Ms. Griffard with his business card.

28. At that point, the officer turned Ms. Griffard around and handcuffed her.

29. Ms. Griffard's co-worker was on the scene and available to take her dog, Harvey.

30. Nevertheless, NYPD officers removed Harvey and took him into police custody.

31. Harvey was traumatized by the incident and now takes medication to treat his anxiety disorder.

32. No one else on scene, including the young men involved in the interaction that Ms. Griffard stopped to film, was arrested.

33. Ms. Griffard was taken to the 79th precinct and kept in a holding cell for around eight hours.

34. During the first several hours of her detention, Ms. Griffard asked repeatedly where her dog was being held.

35. NYPD officers refused to give her any updates.

36. At approximately 1:00 a.m. on May 4, 2020, Ms. Griffard was released from custody and reunited with Harvey, who had been held in the kennel at the precinct.



(Harvey)

37. NYPD officers had confiscated Ms. Griffard's phone, which she used to videotape their interaction on the street. The phone was never returned.

38. Ms. Griffard was given a desk appearance ticket, and the charges against her—for obstruction of government administration—were later dismissed.

DAMAGES

39. Ms. Griffard was falsely arrested and detained, and her companion animal was seized, in retaliation for her lawful recording of police activity and request for an officer's business card.

40. The injuries and damages sustained by Ms. Griffard arising from her unlawful arrest and the seizure of her dog include but are not limited to the following: loss of freedom; pain and suffering; and emotional distress.

41. As a direct and proximate result of Defendants' actions, Ms. Griffard was unlawfully arrested, her companion animal was seized, and she suffered the damages and injuries described in this Complaint.

FIRST CAUSE OF ACTION

**42 U.S.C. § 1983, United States Constitution Amendments IV and XIV
False Arrest and Imprisonment**

42. Ms. Griffard realleges and incorporates the above allegations as if fully set forth here.

43. The Defendants deprived Ms. Griffard of her clearly established rights under the Fourth and Fourteenth Amendments to the United States Constitution, including but not limited to:

- a. freedom from arrest without probable cause; and
- b. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion or legal justification, of which wrongful detention Ms. Griffard was aware and did not consent.

44. The Defendants intended to and did confine Ms. Griffard for an extended period of time, of which confinement she was conscious and to which she did not consent. Ms. Griffard's confinement was not otherwise privileged.

45. Specifically, the Individual Defendants, acting individually and in concert, arrested Ms. Griffard on May 3, 2020, when they knew probable cause did not exist to charge Ms. Griffard with any crime.

46. As a result, Ms. Griffard was taken into custody, transported to the 79th Precinct, and held in custody at the 79th Precinct for eight hours—with no information about the whereabouts of her dog—until she was released with a Desk Appearance Ticket.

47. The Defendants performed the above-described acts under color of state law, intentionally, with reckless disregard for the truth, and with deliberate indifference to, Ms. Griffard's clearly established constitutional rights. No reasonable officer in 2020 would have believed that conduct was lawful.

48. As a direct and proximate result of the Defendants' actions, Ms. Griffard was wrongly imprisoned for eight hours and suffered the other grievous and continuing damages and injuries described in this Complaint.

49. The unlawful conduct of Defendants was willful, malicious, oppressive, or reckless, and was of such a nature that punitive damages should be imposed.

SECOND CAUSE OF ACTION

**42 U.S.C. § 1983, United States Constitution Amendments I and XIV
Retaliatory Arrest**

50. Ms. Griffard realleges and incorporates the above allegations as if fully set forth here.

51. The Defendants deprived Ms. Griffard of her clearly established rights under the First and Fourteenth Amendment to the United States Constitution, including, but not limited to

- a. freedom from retaliatory arrest; and
- b. freedom from interference with activity protected by the First Amendment and prior restraint of the same.

52. Ms. Griffard has a First Amendment-protected right to film police interactions.

53. The Defendants arrested Ms. Griffard, without probable cause, because of and with intent to interfere with her protected First Amendment activity.

54. The Defendants' retaliatory arrest of Ms. Griffard disrupted her protected activity—filming a police interaction—and caused additional concrete harm, as described in this Complaint.

55. The Defendants performed the acts outlined in this Complaint under color of state law, with reckless disregard and deliberate indifference to Ms. Griffard's clearly established constitutional rights. No reasonable officer in 2020 would have believed that conduct was lawful.

56. As a direct and proximate result of the Defendants' actions, Ms. Griffard suffered retaliatory arrest and interference with her First Amendment rights, as well as the other damages and injuries described in this Complaint.

57. The unlawful conduct of the Defendants was willful, malicious, oppressive, or reckless, and was of such a nature that punitive damages should be imposed.

THIRD CAUSE OF ACTION

42 U.S.C. § 1983, United States Constitution Amendments VI and XIV Unreasonable Seizure

58. Ms. Griffard realleges and incorporates the above allegations as if fully set forth here.

59. The Defendants deprived Ms. Griffard of her clearly established right under the Fourth and Fourteenth Amendments of the United States Constitution to be free from the unreasonable seizure of her property.

60. The Defendants deprived Ms. Griffard of her right to be free from unreasonable seizure of her property by unreasonably removing and detaining her dog, Harvey.

61. Ms. Griffard's co-worker was on the scene and available to take custody of Harvey while Ms. Griffard was detained. The Defendants, however, seized Harvey and kept him in a kennel at the police precinct for eight hours, refusing to tell Ms. Griffard where he was.

62. As a result, Harvey missed his dinner.

63. Furthermore, during that period of time, NYPD officers removed Hervey from the kennel for their own enjoyment and without Ms. Griffard's permission.

64. The Defendants did not have an interest, let alone an important interest, in seizing Ms. Griffard's dog, Harvey.

65. The Defendants performed the acts described in this Complaint under color of state law, with reckless disregard and deliberate indifference to Ms. Griffard's clearly established constitutional rights. No reasonable officer in 2020 would have believed that conduct was lawful.

66. As a direct and proximate result of the Defendants' actions, Ms. Griffard suffered the unlawful, unnecessary, and retaliatory seizure of her pet dog, Harvey, as well as the other damages and injuries set forth above.

67. The unlawful conduct of the Defendants was willful, malicious, oppressive, or reckless, and was of such a nature that punitive damages should be imposed.

FOURTH CAUSE OF ACTION

42 U.S.C. §1983 *Monell* Liability for Constitutional Violations

Against Defendant City of New York

68. Ms. Griffard realleges and incorporates the above allegations as if fully set forth here.

69. In arresting Ms. Griffard without probable cause for recording police activity in public, the Defendants violated her clearly established rights under the First, Fourth, and Fourteenth Amendments to the United States Constitution.

70. At all times relevant to this Complaint, the Defendants were acting under color of state law.

71. At all times relevant to this Complaint, the NYPD has had a widespread policy, custom, and practice of obstructing and preventing concerned citizens from recording police activity in public locations, and of targeting and arresting citizens for recording police activity in

public places, in violation of the First, Fourth, and Fourteenth Amendments to the United States Constitution.

72. The Defendants' acts and omissions described in this Complaint were carried out pursuant to Defendant City's overlapping customs and practices, which were in existence on May 3, 2020, and were engaged in with the full knowledge, consent, and cooperation, and under the supervisory authority of, Defendant City and its agency, the NYPD.

73. The acts complained of were carried out by the Defendants in their capacities as police officials pursuant to customs, policies, usages, practices, procedures, and rules of Defendant City and the NYPD, all under the supervision of ranking officers of the NYPD.

74. The existence of the unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in the following civil rights actions filed against Defendant City:

- a. *Vasquez v. City of New York*, 22-CV-510 (E.D.N.Y.) (challenging the retaliatory arrest of Robbin Vasquez, a Brooklyn mother who spent hours in custody, suffering asthma attacks and sexual advances from NYPD officers, because she filmed the 2019 arrest of her child's father);
- b. *Kye v. City of New York*, No. 21-CV-03660 (S.D.N.Y.) (challenging the arrest and assault of Kiyee Kye, who—along with his cousin—was recording NYPD officers from a safe distance);
- c. *Jenkins v. City of New York*, No. 18-CV-9177 (S.D.N.Y.) (challenging the arrest of Briia Jenkins, who was arrested and assaulted after recording NYPD officers accosting three young Black men, and obtained a judgment in her favor);
- d. *Beckford v. City of New York*, 16-CV-2261 (S.D.N.Y.) (challenging the arrest of Mr. Beckford, who was arrested and subsequently released without charges for recording police searching his family in front of their home);
- e. *Disisto v. City of New York*, 15-CV-3925 (S.D.N.Y.) (challenging the arrest of Mr. Disisto, who was arrested while attempting to film NYPD officers search the bag of an acquaintance);
- f. *Basinski v. City of New York*, 14-CV-1057 (S.D.N.Y.) (challenging the arrest of attorney who was recording the police during a rally in Manhattan);

- g. *Charles v. City of New York*, 12-CV-6180 (E.D.N.Y) (challenging the arrest of a woman who was pushed and then arrested for using her phone to record the stop-and-first of three men on a public sidewalk);
- h. *Runnells v. City of New York*, 13-CV-2904 (S.D.N.Y) (challenging the arrest of John Runnells, who was arrested, and had his camera seized, after recording police officers at a traffic checkpoint);
- i. *Rodriguez v. Winski*, 12-CV-3389 (S.D.N.Y) (challenging the arrest and subsequent re-arrest of Justin Sullivan, who was first arrested for filming police at an Occupy Wall Street protest and then arrested again when he returned to the police precinct to retrieve his camera, which had allegedly been destroyed);
- j. *Ortiz v. City of New York*, 11-CV-7919 (S.D.N.Y.) (challenging the arrest of Anibal Ortiz, who was arrested after he began recording NYPD officers who asked him for identification);
- k. *Mesa v. City of New York*, 09-CV-10464 (S.D.N.Y.) (challenging the arrest of Dennis Flores, who, after one officer told him that it was “illegal to photograph the police,” was arrested for photographing NYPD officers’ use of force to disperse a crowd at a festival in the Bronx);
- l. *Bandeale v. City of New York*, 07-CV-3399 (S.D.N.Y.) (challenging the arrests of Lumumba Bandeale, Djibril Toure, and David Floyd, who were arrested while videotaping two arrests in February 2005);

75. According to the NYPD’s own data, NYPD officers arrested at least 2,746 people who were recording or attempting to record police activities in 2021 and 2022 alone. NYPD, *Right to Record*, <https://www.nyc.gov/site/nypd/stats/reports-analysis/right-to-record.page> (last visited Mar. 30, 2023)).

76. As a direct and proximate result of Defendant City’s unconstitutional policies, customs, and practices, Ms. Griffard suffered damages, including impairment of her First, Fourth, and Fourteenth Amendment rights and emotional distress.

FIFTH CAUSE OF ACTION
N.Y.C. Administrative Code §§ 8-801 TO 8-807

77. Ms. Griffard realleges and incorporates the above allegations as if fully set forth here.

78. Ms. Griffard's right to be free from unreasonable searches and seizures was violated by the conduct of the Defendants.

79. The City of New York is liable as the employer of the Defendants under New York City Administrative Code § 8-803(b).

80. Qualified immunity is no defense to this claim.

81. As a result of the above unconstitutional conduct, Ms. Griffard was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

82. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

JURY DEMAND

83. Ms. Griffard demands a trial by jury in his action on each and every one of her damages claims.

DEMAND FOR RELIEF

Ms. Griffard demands judgment against the Defendants individually and jointly and prays for the following relief:

- a. Compensation for violations of her constitutional rights, pain, suffering, mental anguish, and humiliation; and
- b. Punitive damages against the Individual Defendants;
- c. Compensation for attorneys' fees, costs, disbursements for this action; and
- d. Such other, further, and different relief as to the Court may seem just and proper.

Dated: May 2, 2023
New York, New York

Respectfully submitted,



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Attorneys for Plaintiff

ATTORNEY'S VERIFICATION

I, David B. Rankin, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

1. I am the attorney of record for Plaintiff.
2. I have read the annexed Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
3. This verification is made by me because Plaintiff does not reside in the County where I maintain my office.

Dated: May 2, 2023
New York, New York

Respectfully submitted,



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